

4.3.4 Public availability of prior art documents

a) Commercial brochures

With regard to the public availability of commercial brochures, some boards adopt the less strict standard of the "balance of probabilities" (see e.g. T. 743/89 (brochure produced by the patentee) and T. 804/05 (prospectus issued by a third party)). Concerning a commercial brochure (prospectus) of a product produced by the opponent, in T. 1748/10 the board considered it more appropriate to assess public availability on "the balance of probabilities" citing T. 743/89 and T. 1140/09 and not the standard "up to the hilt" as alleged by the patentee, in view of the fact that the brochure originated from the opponent. In the board's view, although D1 originated from the opponent, it was distributed to the public. Therefore both parties were able to access and adduce evidence relating to the availability of document D1. The board in T. 1140/09 considered the "balance of probabilities" to be the proper standard of proof to be applied for the question of the public availability of document E3, a brochure that had been distributed by the appellant (opponent) to visitors at CeBIT and had therefore been made available to the public before the priority date. In the particular case, **however**, the evidence presented by the appellant was such that it also met the stricter standard of proof as proposed by the respondent. Given the importance of large industrial fairs such as CeBIT for doing business and the strong interest of the appellant in making its brochure as widely available as possible, the board found that the public availability of document E3 was proven beyond reasonable doubt.

In T. 184/11 the board first had to decide whether the document was an advertising brochure or a product data sheet. It contained no detailed technical data, merely general technical information. After a detailed review of the case law on standards of proof and the public availability of advertising brochures, the board decided that nothing in the reasons given for the contested decision indicated that the opposition division, in assessing probability, had not critically and precisely evaluated the evidence before it.

In T. 146/13 the proprietor maintained that it had not been proven beyond any doubt that an advertising brochure had been distributed before the patent's priority date. The board, citing settled case law on commercial brochures as prior art and in particular T. 743/89 and T. 804/05, held that enough time (two years) had elapsed between printing and the priority date to conclude that the brochure really had been made available to the public. Adding that in practice the whole point of printing advertising brochures was to attract the attention of potential clients, it therefore decided that the brochure was prior art within the meaning of Art. 54(2) EPC. Compare with T. 738/04, point 4.1.1 of the Reasons.

In T. 743/89 it had been proved that a **leaflet** disclosing the invention had been printed seven months before the priority date, but it was uncertain when the leaflet had been distributed. Based on the balance of probabilities, the board concluded that the leaflet was available to the public before the priority date of the patent in suit and was, consequently, comprised in the state of the art. Although the date of distribution could no longer, i.e. 10 years on, be ascertained, it could reasonably be assumed that it had taken place within less than 7 months and had thus been completed well before the priority date of the patent in suit. The opposite assumption that the brochure had been kept confidential was not very

plausible since it was in the patentee's own interest to ensure wide-spread distribution of the brochure in order to inform as many potential customers as possible of this latest development in a highly competitive field. Hence, the onus of proof was incumbent on the patentee who incidentally, being the originator of the pamphlet, should be in the possession of the necessary information.

In T 2451/13 the board applied the standard "up to the hilt" as meaning beyond reasonable doubt concerning the publication date of a brochure (brochure originated from a subsidiary of the opponent – all evidence essentially in the hands of the opponent). See also T 1262/15 (instruction manual).

The board in T 1710/12 agreed that the rigorous standard of "up to the hilt" is typically applied in cases where a prior use is involved. However, in the case before it, catalogue E1 had **not** been **provided in support of an alleged prior use**, but as written evidence on its own. The board thus deemed it appropriate to judge the public availability of E1 using the "balance of probabilities" approach. Document E1 (catalogue published by a company not being a party) was considered prior art under Art. 54(2) EPC.

b) Convincing the board and discussion on the standard of proof

Even though different concepts as to the standard of proof have developed in the case law of the boards, they all have in common that a judgement is to be made on the basis of the application of the principle of free evaluation of evidence. In the case of published documents, the standard of proof for public availability is usually the less strict one of the "balance of probabilities" (T 1140/09, point 3.2 of the Reasons). But even though the present case (date of availability in a public library of journal supplement disclosing meeting abstracts for a future conference) fell under the "balance of probabilities" standard for burden of proof, the board did not form its opinion solely on the basis of whether the alleged facts were just slightly more likely to have occurred than not, but on the basis of whether it was convinced that they had indeed occurred (T 1050/12).

The board in T 1107/12 found there was no indication that the opposition division had applied the wrong standard of proof, even if it had not explicitly discussed whether the strict standard of "beyond reasonable doubt" or the usual "balance of probabilities" standard should be applied. The case law requiring absolute certainty or proof beyond all reasonable doubt, which the respondent had cited in support of its position, was concerned with alleged public prior use (see T 441/04, T 472/92 and T 2451/13) and had applied that standard because, in such cases, the supporting evidence was almost always in the opponent's possession. The case in hand, however, turned on whether a document originating from one of the opponents had been publicly available on a particular date. Its availability was supported by witness testimony, the probative value of which was to be evaluated freely. Ultimately, there was no need to decide whether the stricter standard of proof had to be applied in such circumstances too, since, in view of the evaluation of the evidence by the department of first instance, the board didn't have to re-evaluate the evidence in its place. See also T 2466/13 below, in which it was likewise found that there was no need to decide on the applicable standard of proof. In the same vein, see T 768/20 and T 660/16 citing in particular to T 545/08 (points 8 and 11 of the Reasons).

c) Archives and internet publications

In T 151/99 the board regarded it as **highly plausible** in the light of the available evidence that a **master's thesis** had become available to at least one member of the public. If the reference was in a document published before the priority date of the patent in suit then it could be assumed that the thesis had also been made available to the public before the said date (decision analysed more recently in T 538/09, which concerns a master's thesis of the first examiner as prior art; also citing T 1134/06 and T 750/94 in that an important criterion in evaluating evidence is the reliability of the source: fulfilled for University of Utah). The strict standard of proof (beyond reasonable doubt) laid down as the rule for internet publications in T 1134/06 no longer applies since T 286/10 and T 2227/11, both found the balance of probabilities to be the usually applicable standard.

In T 2165/18 the opposition division had found there was a lack of novelty over the undated user manual E1, which had been published online (www.janserwis.pl). The board observed that dates obtained from reputable and trusted editors or archives, which included www.archive.org in particular, were accepted by the boards as reliable. Janserwis, however, was not a known reputable editor or archive, so the board considered the probative value of a witness statement made by two of its company members to be insufficient. The opponent had also invoked the prior use of the mass-market software product the user manual was for, but this was unsuccessful as it did not answer the crucial question what version of the manual had been supplied then. Finding that a witness's testimony alone was not enough to fill in the gaps in the evidence as to when user manual E1 had been published and which software version it had accompanied, the board held that its date of public availability had not been established.

In T 1469/10 the board held that the publication dates indicated on the documents published by the ETSI 3GPP organisation, which was regarded as a reputable standardisation body having clear and reliable rules for their publications, were of a high probative value and thus might serve as prima facie evidence that a document was published on the date indicated, and regarded the documents at issue thus as representing the state of the art under Art. 54(2) EPC.

As a matter of principle, if an adverse decision of an organ of the EPO is to rely on a certain fact that fact should be proven beyond any reasonable doubt. In T 826/03, the board applied this principle when attempting to establish the publication date of a Canadian patent application, and whether it was prior art. It found that in view of the contradictory evidence on file and in the absence of any further clarifying information from the Canadian Intellectual Property Office, it was virtually impossible for the board to establish with certainty that the public had access to the application according to document D3 before the priority date claimed by the application in suit. It therefore considered document D3 as not belonging to the prior art within the meaning of Art. 54(2) EPC.

4.3.5 Claiming a valid priority

In T 1056/01 the board pointed out that because of the crucial effect a valid priority date had on patentability, the date of filing of the application whose priority was claimed had to

be proven in a formal way, namely by a certificate issued by the authority which had received that application (see R. 53(1) EPC and Art. 4D(3) Paris Convention). Even if no such **formal proof** was prescribed for the timely withdrawal of a previous application pursuant to Art. 87(4) EPC (see Art. 4C(4) Paris Convention), it appeared appropriate to require an equally high standard of proof, for once there existed a previous application concerning the same invention both dates were equally relevant for establishing the validity of the claimed priority. However, in the case at issue, the timely withdrawal of the UK application for the purposes of Art. 87(4) EPC could not be established. Unlike facts barring patentability (see for example T. 219/83 cited by the appellant), the timely withdrawal of a previous application was a positive precondition for claiming a valid priority from a subsequent application for the same invention. Hence, the date of the effect of the withdrawal was a fact which could act in the applicant's favour, and she had relied on it just as she had relied on the filing date (and the content) of the subsequent UK application (this decision was cited and applied in T. 62/05)

Case T. 493/06 involved the issue of the valid transfer of a priority application. According to the board, the submitted statutory declarations and notarial certifications provided sufficient evidence that the copy of the transfer agreement was the same as the original.

In T. 205/14 the board disagreed with the reasoning of T. 62/05 that the transfer had to be proven in a formal way, applying an equally high standard of proof as that required by Art. 72 EPC 1973. Art. 72 EPC 1973 set out formal requirements for a valid assignment of a European patent application and thereby limited the means of giving or obtaining evidence for determining such a transfer. Having regard to Art. 117 EPC and the principle of free evaluation of evidence, the rule should not be extended beyond its scope of application. Since the provisions of the EPC did not lend themselves to an autonomous determination of the requirements for transfer of the right of priority, the validity of such transfer was a matter of **national law** (cf. T. 1008/96 (two pieces of evidence mutually exclusive: declaration before a notary public and decision of Italian Court); cf. also approach in T. 160/13 (transfer of priority right within a corporate group – emails), J. 19/87, T. 493/06). T. 205/14, T. 517/14 and T. 1201/14 deal with numerous issues of proof, standard of proof and burden of proof.

In T. 1201/14 the board stated that concerning the proof of a valid transfer of the right of priority, the probative value of the affidavits submitted was to be decided by the board in accordance with the established principle of free evaluation of evidence. As to the standard of proof to be applied, the board concurred with the respondent (opponent) that the circumstances of the case required proof "beyond reasonable doubt" (rather than proof based on the "balance of probabilities", as relied upon in T. 205/14, point 3.6.1 of the Reasons and the almost identical case T. 517/14, point 2.7.1 of the Reasons). This was because practically all the evidence lay within the knowledge and power of only one party to these inter partes proceedings within the meaning of T. 472/92 (OJ 1998, 161, point 3.1 of the Reasons (concerning public prior use), i.e. the patent proprietor (appellant) here, whereas the other party (respondent) was not in a position to present any counter-evidence. In any event, regarding the alleged second transfer of the right of priority, the appellant's case failed for lack of sufficient evidence.

In T.2466/13, concerning the formal validity of a transfer of the right of priority and the required standard of proof, the board observed that the case law on this is not consistent: "balance of probabilities" in T.205/14 and T.517/14; stricter standard of proof in T.1201/14. In the end, the board concluded that there was no need to decide on the standard of proof as there was never any doubt that the transfer had taken place.

More recent decision T.407/15 stated that, regardless of the form that the transfer of the priority right might have taken, evidence of any such transfer had to be provided in order for the board to decide on the issue. The standard of proof applied was the balance of probabilities.

See also chapter II.D.2.2. "Right of priority of the applicant or his successor in title".

4.3.6 Abusive conduct

In G.3/97 and G.4/97 (OJ 1999, 245 and 270) the Enlarged Board of Appeal held that if the person named as opponent according to R.76(2)(a) EPC (former R.55(a) EPC 1973) was acting on behalf of a third party, such an opposition was inadmissible only if the involvement of the opponent was to be regarded as circumventing the law by abuse of process. The deciding body had to be satisfied on the basis of clear and convincing evidence that the law had been circumvented by abuse of process.

In T.291/97 the appellant had contended in the statement of grounds of appeal that the publication of document (1) had occurred in consequence of an evident abuse within the meaning of Art.55(1)(a) EPC, and thus did not constitute prior art citable against the claims at issue. The board decided that the above publication was to be taken into consideration for the application of Art.54 EPC. It observed in its decision that the finding of an **evident abuse** under Art.55(1)(a) EPC was a serious matter. An abuse was not lightly to be presumed. The standard of proof was identified by the words "evident abuse" (German: "offensichtlicher Missbrauch"; French: "un abus évident") as being high: the case had to be clear-cut, and a doubtful case would not be resolved in favour of the applicant. The evidence filed in the case at issue did not meet this standard (see also T.41/02).

In J.14/19 (stay of the proceedings), the appellant (applicant) asserted that the respondent was committing an abuse of law in delaying the proceedings for grant. The Legal Board held that improperly asserting a right could amount to an abuse of law in some cases, for instance if the right was exerted predominantly with a view to causing damage, ahead of other, legitimate aims. The abuse of law had to be established beyond any doubt; that meant carefully examining and weighing up the circumstances of the individual case, with the burden of proof falling on whoever alleged abuse. (Same standard of proof in T.2951/18 regarding an intervener).

In D.5/86 (OJ 1989, 210) the board held that an infringement of the rules of professional conduct had to be established to the satisfaction of the disciplinary body before it could impose a disciplinary measure. Absolute certainty was not required, but a **higher degree of probability** which in human experience verged on certainty. A disciplinary measure